



INDIAN POLITY

- **PARLIAMENTARY COMMITTEES**
- **CABINET COMMITTEES**

MODULE – 73



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MEANING OF PARLIAMENTARY COMMITTEES

- The functions of the Parliament are varied, complex and voluminous.
- Moreover, it has neither the adequate time nor necessary expertise to make a detailed scrutiny of all legislative measures and other matters.
- Therefore, it is assisted by a number of committees in the discharge of its duties.

The Constitution of India makes a mention of these committees at different places, but **without making any specific provisions regarding their composition, tenure, functions, etc.**

Accordingly, a parliamentary committee means a committee that:

1. Is appointed or elected by the House or nominated by the Speaker / Chairman
2. Works under the direction of the Speaker / Chairman
3. Presents its report to the House or to the Speaker / Chairman
4. Has a secretariat provided by the LS/ RS



— PARLIAMENT OF INDIA —

CLASSIFICATION

Broadly, parliamentary committees are of two kinds—Standing Committees and Ad Hoc Committees.

- Standing committees are permanent in nature(constituted every year or periodically)
- Works on a continuous basis.

- Ad Hoc are temporary committees
- It ceases to exist on completion of the task assigned to them.

PARLIAMENT COMMITTEES

STANDING COMMITTEES

1 Financial Committees:

- a) Public Accounts Committee
- b) Estimates Committee
- c) Committee on Public Undertakings

2 Committees to Inquire

- a) Committee on Petitions
- b) Committee of Privileges
- c) Ethics Committee

3 Committees to Scrutinise and Control

- a) Committee on Government Assurances
- b) Committee on Subordinate Legislation
- c) Committee on Papers Laid on the Table
- d) Committee on Welfare of SCs and STs
- e) Committee on Empowerment of Women
- f) Joint Committee on Offices of Profit

4 Departmental Standing Committees

5 Committees Relating to the Day-to-Day Business of the House

- a) Business Advisory Committee
- b) Committee on Private Members' Bills and Resolutions
- c) Rules Committee
- d) Committee on Absence of Members from Sitzings of the House

6 House-Keeping Committees:

- a) General Purposes Committee
- b) House Committee
- c) Library Committee
- d) Joint Committee on Salaries and Allowances of Members

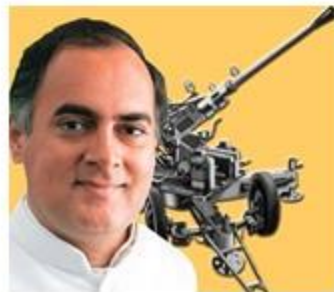
PARLIAMENT COMMITTEES

AD HOC COMMITTEES

Ad hoc committees can be divided into two categories, that is, Inquiry Committees and Advisory Committees.

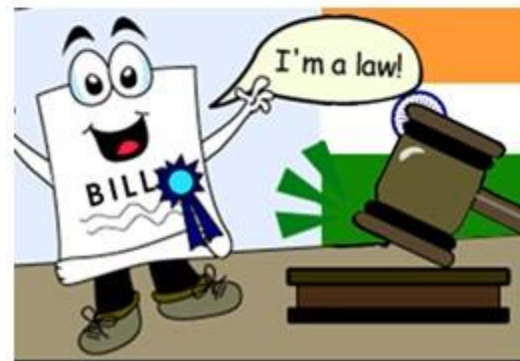
INQUIRY COMMITTEES

Inquiry Committees are constituted from time to time, either by the two Houses on a motion adopted in that behalf, or by the Speaker / Chairman, to inquire into and report on specific subjects.



ADVISORY COMMITTEES

Advisory Committees include select or joint committees on bills, which are appointed to consider and report on particular bills.



PARLIAMENT COMMITTEES

AD HOC COMMITTEES

LET US TRY UNDERSTANDING MORE ABOUT ADVISORY COMMITTEES

A Bill comes up before a House for general discussion

Referred to a Select Committee of the House or a Joint Committee of the 2 Houses.

A motion to this effect has to be moved

JOINT COMMITTEE:

The decision is conveyed to the other House, requesting the members to nominate members of the other House to serve on the Committee.

Members who do not agree with the majority may add their **minutes of dissent**

After the Bill has thus been considered, the Committee **submits its report to the House.**

take evidence of associations, public bodies or experts who are interested in the Bill.

Amendments to various clauses

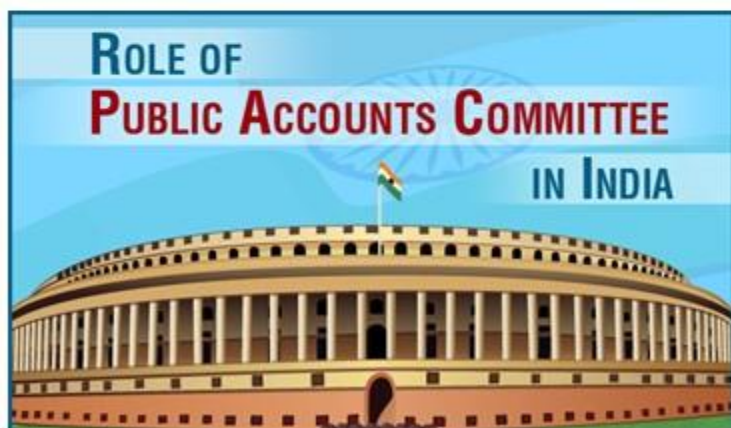
Select or Joint Committee considers the Bill **clause by clause**

FINANCIAL COMMITTEES

1. PUBLIC ACCOUNTS COMMITTEE

CHAIRMAN BY CONVENTION!

Until 1966 - '67, the chairman of the committee belonged to the ruling party. However, since 1967 a convention has developed whereby the chairman of the committee is selected invariably from the Opposition.



- 1 Was set up first in 1921 under the provisions of the GoI Act of 1919.
- 2 Total- 22 members. (LS- 15, RS- 7)
- 3 The members are elected every year from according to the principle of proportional representation by means of STV. Due representation ensured.
- 4 Term of office - one year.
- 5 A minister cannot be elected as a member of the committee.
- 6 The chairman is appointed from amongst its members by the Speaker.

FINANCIAL COMMITTEES

1. PUBLIC ACCOUNTS COMMITTEE

Broadly, the function of the committee is to examine the annual audit reports of the Comptroller and Auditor General of India (CAG), which are laid before the Parliament by the President.

The CAG submits three audit reports to the President, namely:

- ✓ audit report on appropriation accounts,
- ✓ audit report on finance accounts and
- ✓ audit report on public undertakings.

The committee examines public expenditure from legal and formal point of view to discover technical irregularities.

It also examines from the point of view of economy, prudence, wisdom and propriety to bring out the cases of waste, loss, corruption, extravagance, inefficiency and nugatory expenses.

In the fulfillment of the above functions, the committee is assisted by the CAG.

PARLIAMENT COMMITTEES

FINANCIAL COMMITTEES

PUBLIC ACCOUNTS COMMITTEES

However, the effectiveness of the role of the committee is limited by the following:

- | | |
|--|---|
| a It is not concerned with the questions of policy in broader sense. | d Its recommendations are advisory and not binding on the ministries. |
| b It conducts a post-mortem examination of accounts (showing the expenditure already incurred). | e It is not vested with the power of disallowance of expenditures by the departments. |
| c It cannot intervene in the matters of day-to-day administration. | f It is not an executive body and hence, cannot issue an order. Only the Parliament can take a final decision on its findings. |

PARLIAMENT COMMITTEES

FINANCIAL COMMITTEES

ESTIMATES COMMITTEES

- 1 *The first Committee was constituted in 1950 on the recommendation of John Mathai.*
- 2 *Original membership 25; now-30*
- 3 *No representation from Rajya Sabha*
- 4 *Elected by LS every year through proportional representation by STV.*
- 5 *Term of office - 1 year.*
- 6 *A Minister cannot be elected as a member.*
- 7 *Chairman, conventionally from ruling party, gets appointed by Speaker.*
- 8 *Functions of the committee is to examine the estimates included in the budget*
- 9 *Hence, it has been described as a 'continuous economy committee'.*

PARLIAMENT COMMITTEES

FINANCIAL COMMITTEES

ESTIMATES COMMITTEES

FUNCTIONS OF THE COMMITTEE ARE :

- a** To report what economies, improvements in organisation, efficiency and administrative reform consistent with the policy underlying the estimates, can be affected.
- b** To suggest alternative policies in order to bring about efficiency and economy in administration.
- c** To examine whether the money is well laid out within the limits of the policy implied in the estimates.
- d** To suggest forth schemes in which the estimates are to be presented to Parliament

PARLIAMENT COMMITTEES

FINANCIAL COMMITTEES

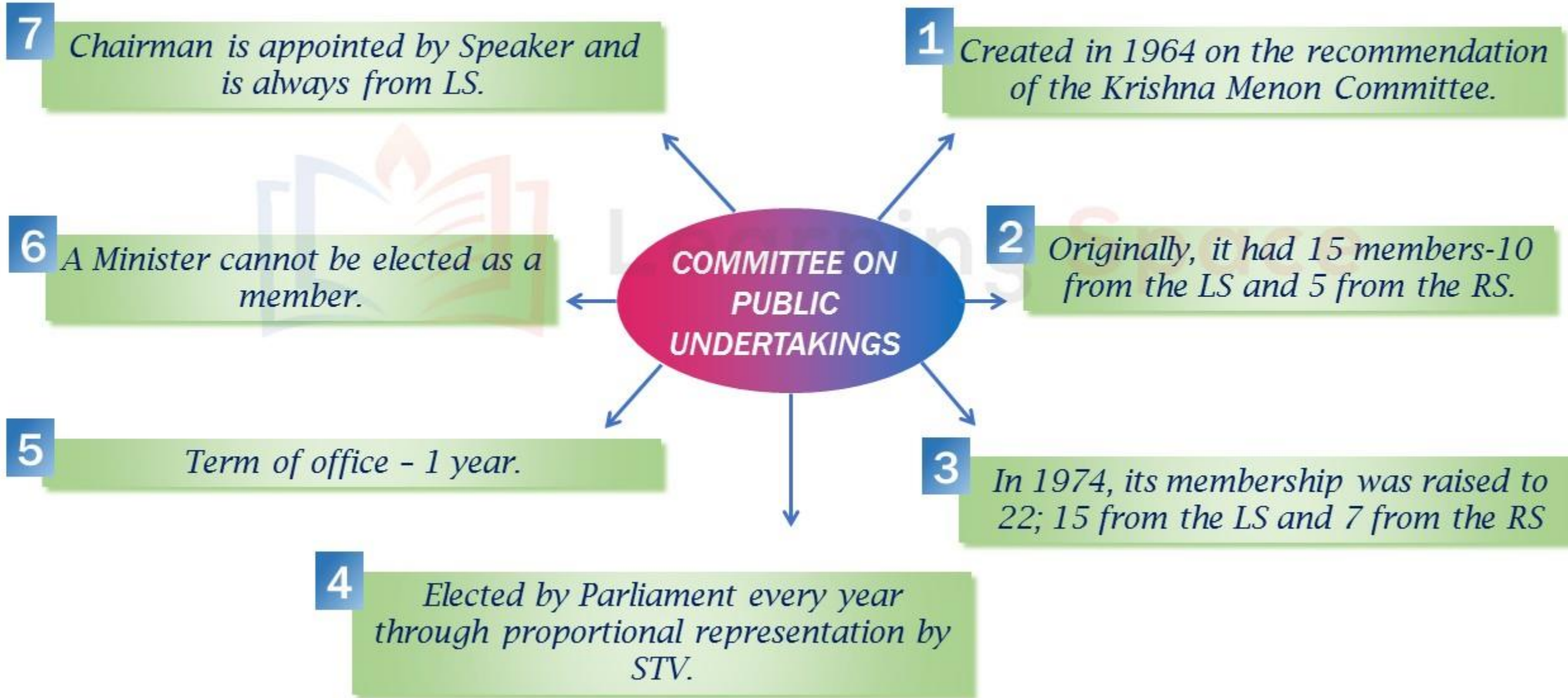
ESTIMATES COMMITTEES

HOWEVER, THE EFFECTIVENESS OF THE ROLE OF THE COMMITTEE IS LIMITED BY THE FOLLOWING:

- | | |
|--|--|
| <p>a It examines the budget estimates only after they have been voted by the Parliament, and not before that.</p> | <p>d It examines every year only certain selected ministries and departments. Thus, by rotation, it would cover all of them over a number of years.</p> |
| <p>b It cannot question the policy laid down by the Parliament.</p> | <p>e It lacks the expert assistance of the CAG which is available to the PAC.</p> |
| <p>c Its recommendations are advisory and not binding on the ministries.</p> | <p>f Post-mortem work.</p> |

PARLIAMENT COMMITTEES

FINANCIAL COMMITTEES



PARLIAMENT COMMITTEES

FINANCIAL COMMITTEES

COMMITTEE ON PUBLIC UNDERTAKINGS

THE FUNCTIONS OF THE COMMITTEE ARE :

a To examine the reports and accounts of public undertakings

b To examine the reports of the CAG on public undertakings

*THE FUNCTIONS
OF THE
COMMITTEE ARE*

c To examine whether the affairs of the public undertakings are being managed in accordance with sound business principles and prudent commercial practices

d To exercise such other functions vested in the public accounts committee and the estimates committee in relation to public undertakings

PARLIAMENT COMMITTEES

FINANCIAL COMMITTEES

COMMITTEE ON PUBLIC UNDERTAKINGS

THE COMMITTEE IS NOT TO EXAMINE AND INVESTIGATE ANY OF THE FOLLOWING:

- a** Matters of major government policy as distinct from business or commercial functions of the public undertakings
- b** Matters of day-to-day administration
- c** Matters for the consideration of which machinery is established by any special statute under which a particular public undertaking is established

THE EFFECTIVENESS OF THE ROLE OF THE COMMITTEE IS LIMITED BY THE FOLLOWING:

- a** It cannot take up the examination of more than 10-12 public undertakings in a year.
- b** Its work is in the nature of a post-mortem.
- c** It does not look into technical matters as its members are not technical experts.
- d** Its recommendations are advisory and not binding on the ministries.

PARLIAMENT COMMITTEES

DEPARTMENTAL STANDING COMMITTEES

- 1 On the recommendation of the Rules Committee of the Lok Sabha, 17 Departmentally-Related Standing Committees (DRSCs) were set up in the Parliament in 1993.



- 2 The DRSCs cover under their jurisdiction all the ministries/ departments of the Govt.
- 3 Main objective- to secure more accountability of Executive to the Parliament.
- 4 They also assist the Parliament in debating the budget more effectively.
- 5 Each standing committee consists of 31 members (21 from LS and 10 from RS).
- 6 Appointed by either chairman or speaker.
- 7 Minister not eligible for office.
- 8 Term- 1 year

PARLIAMENT COMMITTEES

DEPARTMENTAL STANDING COMMITTEES

FUNCTIONS



- a To consider the demands for grants of the ministries before they are discussed and voted in the LS.
- b To examine bills pertaining to the concerned ministries / departments
- c To consider annual reports of ministries
- d To consider national basic long-term policy documents presented to the Houses

PARLIAMENT COMMITTEES

DEPARTMENTAL STANDING COMMITTEES

MERITS OF THE STANDING COMMITTEE SYSTEM

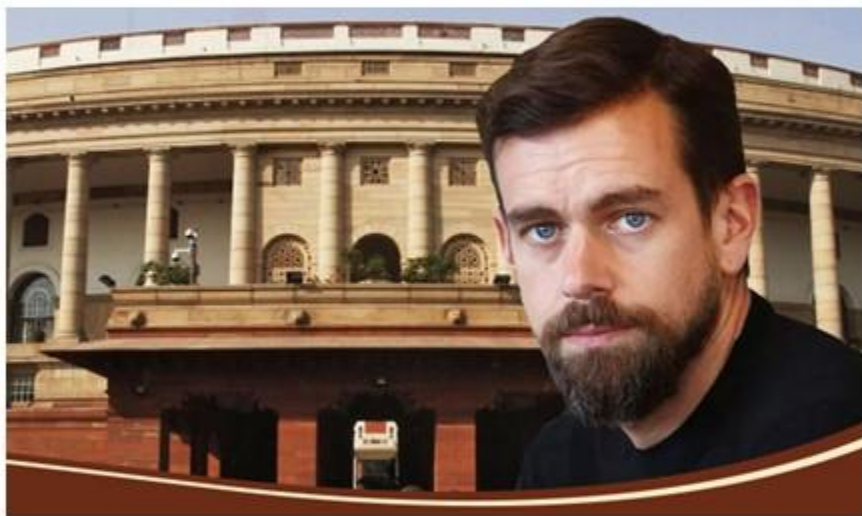
- a Their proceedings are devoid of any party bias.
- b The system makes parliamentary control over executive much more detailed, close, continuous, in-depth and comprehensive.
- c The system ensures economy and efficiency in public expenditure as the ministries / departments would now be more careful in formulating their demands.
- d They facilitate opportunities to all the members of Parliament to participate and understand the functioning of the government and contribute to it.
- e They can avail of expert opinion or public opinion to make the reports.
- f They are authorized to invite experts and eminent persons to testify before them and incorporate their opinions in their reports.
- g The opposition parties and the Rajya Sabha can now play a greater role in exercising financial control over the executive.

PARLIAMENT COMMITTEES

DEPARTMENTAL STANDING COMMITTEES

CURRENT AFFAIRS: RECENT NEWS ABOUT DRSCs

TWITTER CEO SUMMONED



Summons were issued by the Chairman of the Parliamentary Standing Committee on Information Technology Anurag Singh Thakur to Twitter CEO Jack Dorsey to appear before it.

1

Dorsey was summoned to discuss the issue of "safeguarding citizens' rights on social/online news media platforms".

2

The trigger for the Committee's action is a complaint filed by a right-wing group "Youth for Social Media Democracy", which alleged that the micro-blogging platform was arbitrarily suspending accounts of those who are sympathetic to the ruling BJP.

PARLIAMENT COMMITTEES

DEPARTMENTAL STANDING COMMITTEES

CURRENT AFFAIRS: RECENT NEWS ABOUT DRSCs

CONTROVERSY BEHIND IT



1 Functions of the Committee are broadly in relation to review of either legislative exercises or policy matters of the executive.

2 *They are not meant to act as a redressal body for the individual grievances of citizens.*

3 The allegations against Twitter may or may not be correct.

4 But, it is not within the mandate of the Committee to examine the correctness of these allegations.

5 Enforcement and protection of *fundamental rights are functions of the executive and judiciary.*

6 The legislature's function is only to lend statutory support in that exercise.

7 The *Committee, which is a subset of the legislative body, cannot seek to exercise executive or quasi-judicial functions* over this issue of perceived arbitrariness by a social media platform.

PARLIAMENT COMMITTEES

DEPARTMENTAL STANDING COMMITTEES

CURRENT AFFAIRS: RECENT NEWS ABOUT DRSCs

OTHER IMPORTANT NEWS ON DRSCs

- 1 The Standing committee which examined the Citizenship Amendment Bill solicited views and suggestions from various stakeholders.



- 2 The Standing Committee on demonitization had quizzed the former RBI Governor Urjit Patel regarding the policy.



CABINET COMMITTEES



FEATURES OF CABINET COMMITTEE

9 They are an organizational device to reduce the enormous workload of the Cabinet.

8 They not only sort out issues and formulate proposals for the consideration of the Cabinet, but also take decisions.

7 They are mostly headed by the Prime Minister. Some times other Cabinet Ministers, particularly the Home Minister or the Finance Minister, also acts as their Chairman.

6 They not only include the Ministers in charge of subjects covered by them but also include other senior Ministers.

1 They are extra-constitutional in emergence

2 They are of two types—standing and ad hoc

3 They are set up by the Prime Minister according to the exigencies of the time and requirements of the situation.

4 Their membership varies from three to eight.

5 They usually include only Cabinet Ministers. However, the non-cabinet Ministers are not debarred from their membership

MEANING OF PARLIAMENTARY COMMITTEES

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— PARLIAMENT OF INDIA —

FUNCTIONS OF CABINET COMMITTEES

- 1** The Political Affairs Committee deals with all policy matters pertaining to domestic and foreign affairs.
- 2** The Economic Affairs Committee directs and coordinates the governmental activities in the economic sphere.
- 3** Appointments Committee decides all higher level appointments in the Central Secretariat, Public Enterprises, Banks and Financial Institutions.
- 4** Parliamentary Affairs Committee looks after the progress of government business in the Parliament.

The first three committees are chaired by the Prime Minister and the last one by the Home Minister. Of all the Cabinet Committees, the most powerful is the Political Affairs Committee, often described as a “Super-Cabinet”.

PARLIAMENT COMMITTEES

DEPARTMENTAL STANDING COMMITTEES

CURRENT AFFAIRS: RECENT NEWS ABOUT CABINET COMMITTEES

CABINET COMMITTEE ON SECURITY



- 1** Major decisions with respect to the significant appointments, issues of national security, defence expenditure of India, are taken by the Cabinet Committee on Security (CCS) in India.
- 2** The Prime Minister chairs the CCS which comprises the minister of external affairs, the home minister, finance minister, and the defence minister.
- 3** It was recently in news following the Indian Air Force air strikes in Pakistan.

PARLIAMENT COMMITTEES

CONSULTATIVE COMMITTEES

These are forum for informal discussions between the ministers and the members of Parliament on policies and programmes.

- 1 Consultative committees are attached to various ministries / departments of the Central Government.
- 2 They consist of members of both the Houses of Parliament.
- 3 The Minister / Minister of State in charge of the Ministry concerned acts as the chairman of the committee of that ministry.
- 4 Constituted by the Ministry of Parliamentary Affairs, along with giving guidelines for its formation.
- 5 The membership of these committees is voluntary and is left to the choice of the members and the leaders of their parties.
- 6 The maximum membership of a committee is 30 and the minimum is 10.
- 7 These committees are normally constituted after the new Lok Sabha is constituted, after General Elections for the Lok Sabha.
- 8 In other words, these committees shall stand dissolved upon dissolution of every Lok Sabha and shall be reconstituted upon constitution of each Lok Sabha.

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